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02:00 PM **LINE 3**

23-CIV-05486

GERARDO LOPEZ, ET AL VS. PATRICIA PFEIFFER BEEBE

GERARDO LOPEZ  
PATRICIA PFEIFFER BEEBE

DELANEY L. MILLER  
TYRA M. MENDEZ

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**Plaintiff's Motion to be Relieved as Counsel (Lesly Lopez)**

**TENTATIVE RULING:**

The unopposed motion of Windsor Troy Law, LLP to be relieved as counsel of record for plaintiff Lesly Lopez is **GRANTED**.

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02:00 PM **LINE 4**

24-CIV-08047

MEZZETTI FINANCIAL SERVICES, INC. VS. WE ARE THE PEOPLE, INC., ET AL

MEZZETTI FINANCIAL SERVICES, INC.  
WE ARE THE PEOPLE, INC.,

LESLIE A. HOLMES

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**Defense Demurrer to Complaint**

**TENTATIVE RULING:**

The court has construed the demurrer filed by defendant Gail Wilkerson as a Motion for Judgment on the Pleadings. The Motion for Judgment on the Pleadings is **GRANTED with leave to amend**.

Plaintiff Mezzetti Financial Services, Inc. must file any amended complaint within ten (10) days of notice of entry of the formal order.

**A. Wilkerson Cannot File any Papers on Behalf of We Are the People, Inc.**

As a preliminary matter, the demurrer and motion to strike were filed by defendant Gail Wilkerson on behalf of herself and her corporate co-defendant We Are The People, Inc. (People). A corporation must be represented by an attorney and cannot represent itself in court either as a self-represented litigant or through an officer or agent who is not an attorney. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1135.) A non-attorney filing or appearing on behalf of a corporation “would be engaged in the unlicensed practice of law.” (*Id.*, at p. 1146; see Bus. & Prof. Code, § 6125.) Such behavior is punishable as contempt of court. (Bus. & Prof. Code, § 6127, subd. (a).)

Accordingly, the court, on its own motion, strikes from the demurrer and motion all requests for relief made on behalf of People, pursuant to Code of Civil Procedure section 436, subdivision (b). Wilkerson shall not file any paper or appear on behalf of People while not licensed to practice law by the State Bar of California under penalty of contempt.

**B. The Demurrer is Untimely and No Meet and Confer Took Place**

As another preliminary matter, the demurrer is untimely. A demurrer to an initial complaint must be filed within thirty days of service of the complaint. (Code Civ. Proc., § 430.40, subd. (a).) Service was effected on Wilkerson no later than January 9, 2025. (See May 7, 2025 Proof of Service.) Accordingly, any demurrer was required to be filed on or before February 17, 2025. The instant demurrer is late by more than a year. (See Feb. 21, 2026 Demurrer.) Moreover, People is in default and even if it were represented by counsel cannot file

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